

CONTRACT NO. _____

**CONTRACT BETWEEN THE CITY OF CHEYENNE
AND CHEYENNE FRONTIER DAYS, INC.**

1. **Parties.** The parties to this Contract are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming ("City"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Cheyenne Frontier Days, Inc., a Wyoming corporation, ("CFD"), whose address is P.O. Box 2477, Cheyenne, Wyoming 82003.
2. **Purpose of Contract.** The purpose of this Contract is to authorize CFD to use buses leased to the City by Laramie County School District Number One ("District") to provide transportation services during the 2013 Cheyenne Frontier Days celebration and to provide the City with complete and total indemnification and hold harmless provisions. The buses are subject to the Memorandum of Understanding between the City and the District which is attached hereto as Attachment A, incorporated by reference and expressly made a part of this Contract.
3. **Term.** This Contract shall become effective upon the execution thereof by all parties and shall remain in full force and effect through July 28, 2013. The payment and indemnification provisions of this Contract shall survive the termination hereof.
4. **Payment.** CFD agrees to reimburse the City for any and all expenses incurred in leasing the buses described in Attachment A. It is the express understanding that the City shall be fully indemnified against any and all claims, demands, causes of action, damages, injuries, costs, and expenses which the City may incur as a result of or in any way arising out of the leasing of buses from the District for "Park and Ride" program as specified in Attachment A.
5. **CFD's Responsibilities.** CFD covenants that it shall fully and timely reimburse the City for any and all expenses incurred by the City, present or arising in the future, in connection with this Contract. CFD shall ensure that use of the buses described in Attachment A shall fully comply with the terms and conditions set forth in Attachment A including, but not limited to, the requirement that all buses shall be operated only by qualified personnel of Laramie County School District Number One and more fully described in paragraph 6 of Attachment A.
6. **City's Responsibilities.** The City shall make the buses described in Attachment A available to CFD for use by CFD during the 2013 Cheyenne Frontier Days celebration on the terms and conditions set forth in Attachment A.
7. **Special Provisions.** CFD agrees to provide the City and the District certificates of insurance verifying each type and amount of insurance coverage listed below. Certificates will be submitted to the City and the District prior to commencement of performance under this Contract.

<u>Type of Coverage</u>	<u>Minimum Limits</u>
Commercial Automobile Liability	\$1,000,000 combined single limit \$5,000,000 excess or umbrella
Commercial General Liability	\$1,000,000 per occurrence \$2,000,000 aggregate
Excess Liability Coverage	\$5,000,000 per occurrence \$5,000,000 aggregate
Physical Damage Coverage for buses	Replacement cost
Workers' Compensation	Statutory
Employer's Liability "Stop Gap" (if afforded by voluntary Workers' Compensation)	\$500,000 each accident \$500,000 each disease-policy limit \$500,000 disease/each employee

It is understood and agreed that these policies are primary and not contributory. It shall be an affirmative obligation upon Contractor to immediately notify in writing the District risk manager, the City risk manager, City Clerk, and City Attorney of any fact, circumstances, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Contract, and failure to do so shall be construed to be a breach of this Contract.

The City and the District shall be named as additional insureds/loss payees on CFD's insurance policies, except Workers' Compensation, and CFD shall provide upon request by the City or the District copies of endorsements providing this coverage. The failure of the City or the District to request or review such policies, endorsements, or certificates shall not affect the City's rights, the District's rights, or CFD's obligations hereunder.

The City and the District, individually or collectively, have the right to reject a certificate of insurance if any insurance company engaged by CFD to provide the insurance coverages required by this Contract is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this Contract shall have a minimum A.M. Best rating of A- (Excellent).

CFD will pay the District employees' salaries and Workers' Compensation premiums due under this Contract as temporary employees of CFD.

8. **General Provisions.**

A. **Amendments.** Any changes, modifications, revisions or amendments to this Contract

which are mutually agreed upon by the parties to this Contract shall be incorporated by written instrument, executed and signed by all parties to this Contract.

B. Applicable Law. The construction, interpretation and enforcement of this Contract shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Contract and the parties, and the venue shall be in the First Judicial District Court, Laramie County, Wyoming.

C. Compliance with Laws. CFD shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Contract.

D. Entirety of Contract. This Contract, consisting of four pages, and Attachment A, consisting of four pages, represent the entire and integrated Contract between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

E. Indemnification. CFD agrees to indemnify, hold harmless and defend the City and the District from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) CFD's breach of any term or provision of this Contract, or (2) any negligent or wrongful act, error or omission by CFD or its employees or subcontractors in the performance of this Contract. CFD acknowledges that it may incur a financial obligation to the City or the District pursuant to the terms of this paragraph.

F. Independent Contractor. CFD shall function as an independent contractor for the purposes of this Contract. CFD shall assume sole responsibility for any debts or liabilities that may be incurred by CFD in fulfilling the terms of this Contract. Nothing in this Contract shall be interpreted as authorizing CFD, or its agents or employees, to act as an agent or representative of the City or the District or to incur any obligation of any kind on the behalf of the City or the District.

G. Notice. All notices arising out of or from the provisions of this Contract shall be in writing and given to the parties either by regular mail or delivery in person at the addresses indicated above.

H. Nondiscrimination. CFD shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105 et seq., and the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, et seq.

I. Prior Approval. This Contract shall not be binding upon either party and no services shall be performed under the terms of this Contract and no payment shall be made until this Contract has been reduced to writing and approved by all necessary authorities.

J. Governmental Immunity. The City of Cheyenne expressly reserves its rights to invoke governmental immunity for any claim arising out of this Contract pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq.

K. Termination. The City may terminate this Contract for cause immediately without notice or liability in the event CFD fails to perform. Either party may terminate this Contract without cause upon fifteen (15) days written notice, provided the terminating party pays the other party for services rendered or expenses incurred by the other party prior to termination.

9. Signatures. In witness thereof, the parties to this Contract, through their duly authorized representatives, have executed this Contract on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Contract.

The effective date of this Contract date is the date of the last signature affixed to this page.

CHEYENNE FRONTIER DAYS, INC.

Date

By its CEO

Corporate Secretary

TIN: _____

CITY OF CHEYENNE

Date
(SEAL)
Attest:

Richard L. Kaysen, Mayor

Carol Intlekofer, City Clerk